PBM Consultant Disclosure and Attestation

What your consultant receives from PBMs, certified by an officer

EDITION 2026.1 · JULY 2026

SENT TO	Your benefits consultant, advisor, or any intermediary supporting the PBM evaluation
ASKS FOR	Compensation received from PBMs and their affiliates, ownership and governance conflicts, restrictions on what reaches you, and confirmation that recommendations were made independently
COMPANION	PBM Disclosure and Attestation asks the same questions from the other direction. Send both
ONLINE	nautilushealth.org/pbm · contractxray.com

HOW TO USE THIS TEMPLATE

1. Send this to every party advising on the evaluation, including any subcontracted or affiliated firm.
2. Replace every bracketed field, and set a response date that falls before your evaluation begins rather than after.
3. Send the companion PBM version at the same time. Each one is a check on the other, and inconsistent answers are the finding.
4. Have counsel review the certification paragraph before you send it. The signer is certifying accuracy and your reliance on it.
5. Keep the returned attestations. They are part of the record showing how the decision was made.

LETTER TEMPLATE · COPY FROM HERE — FOR THE CONSULTANT

Dear [PBM Consultant Contact Name],

As part of our pharmacy benefit manager (PBM) evaluation process, and consistent with our fiduciary obligations as the plan sponsor, we are requesting written confirmation and attestation regarding compensation, conflicts of interest, and transparency related to PBM procurement and evaluation.

Please confirm the following:

1. COMPENSATION, PAYMENTS, AND ECONOMIC BENEFITS

Please disclose **any and all compensation or economic benefits**, whether direct or indirect, that your firm or its affiliates receive or have received from PBMs or their related entities, including but not limited to:

- Consulting fees, advisory fees, retainers, or project fees
- Success fees, performance-based fees, overrides, or incentive payments
- Referral fees, placement fees, or finder's fees

- Speaker fees, honoraria, sponsorships, or marketing support
- Data access fees, data-sharing arrangements, or analytics compensation
- Loans, advances, lines of credit, equity-linked compensation, or other financing arrangements
- Any other form of monetary or non-monetary consideration, whether paid directly to your firm or indirectly through affiliates or related parties

Please include compensation received **in connection with our plan, this RFP, or any broader PBM-related advisory activities**, whether current or within the past 3 years.

2. OWNERSHIP, GOVERNANCE, AND OTHER CONFLICTS OF INTEREST

Please disclose **any relationships or interests** that could reasonably be viewed as creating a conflict of interest, including but not limited to:

- Ownership interests, equity holdings, profit-sharing arrangements, or options in any PBM or PBM-related entity
- Board memberships, advisory board roles, officer positions, or governance roles with PBMs or related companies
- Strategic partnerships, joint ventures, reseller arrangements, or preferred-vendor relationships
- Familial, personal, or financial relationships that could influence recommendations or evaluations
- Any other contractual, financial, or commercial relationships with PBMs participating in our RFP

For each disclosed relationship, please describe the nature of the relationship and whether it could influence, or reasonably appear to influence, PBM recommendations or evaluation outcomes.

3. DATA ACCESS AND TRANSPARENCY

Please disclose any non-disclosure agreements (NDAs), contractual provisions, or other arrangements that limit or condition our access, as the plan sponsor, to pricing data, pricing methodologies, financial assumptions, evaluation criteria, or RFP outputs.

For each such limitation, please specify:

- The nature and scope of the restriction
- The party imposing the restriction
- Whether the restriction originates with your firm, a PBM, or another third party

Please confirm whether any information is withheld, summarized, normalized, or otherwise modified before being presented to the plan sponsor.

4. INDEPENDENCE AND INTEGRITY OF RECOMMENDATIONS

Please confirm all PBM recommendations, evaluations, and rankings are made independently and are not influenced by compensation arrangements, revenue-sharing, ownership interests, referral relationships, or other disclosed or undisclosed incentives.

Please also confirm:

- No PBM has influenced evaluation criteria, scoring methodology, weighting, or presentation of results
- Recommendations are based solely on the merits of the PBM proposals as evaluated against plan sponsor-defined standards

This request is intended to support clarity, alignment, and fiduciary defensibility. It is not intended to disrupt our working relationship.

Please provide the disclosures and completed attestation below by [date].

Sincerely,
[Name]
[Title]
[Organization]

PBM CONSULTANT: OFFICER ATTESTATION

I certify the information provided is complete, accurate, and not misleading. I acknowledge this disclosure is provided for fiduciary decision-making purposes and the plan sponsor is relying on its accuracy.

Authorized Officer Name: ____
Title: ___
***Organization:* _____**
Signature: ____
Date: _____

About this document. A template for plan sponsors to adapt. Informational and educational purposes only, and not legal, financial, or professional advice. Requesting an attestation does not by itself discharge a fiduciary duty, and the language should be reviewed by qualified counsel before use. © 2026 Nautilus Health Institute.